MADHYA PRADESH

THE OBC RIDDLE: COUNT, BUT CAP

It's a pyrrhic victory for Madhya Pradesh—the SC allows OBC quotas for local body polls, but effectively halves it

By Rahul Noronha

A curious dichotomy has developed in Madhya Pradesh after the Supreme Court's May 18 judgment allowing seat reservation for the Other Backward Classes (OBCs) in the upcoming elections to panchayats and urban bodies. Cornering OBC votes is a prime concern for both the ruling BJP and the Congress—both sides, keen to portray themselves as the real champions of the backwards, have let loose a barrage of allegations and counter-allegations, painting the other party as "anti-OBC". The BJP is celebrating the verdict as a victory gained through its efforts, the Congress is calling it an abysmal defeat. On May 21, one OBC organisation felicitated Chief Minister Shivraj Singh Chouhan, another called it a black day. The irony is that the verdict enables both to justify their charges. To make matters more confusing, as things stand, the apex court has disallowed Maharashtra exactly what it has allowed Madhya Pradesh.

So, what exactly is going on? Well, one strand of the plot begins with the MP government issuing an ordinance in November 2021 declaring that elections to panchayats would be held with the same reservation status as the 2014 election. This was challenged the same month in the high court, chiefly with the argument that rotation was an inherent aspect of reservations in panchayats. For example, if a particular seat was earmarked for a certain category—Scheduled Castes, Scheduled Tribes, OBCs or 'General'—it would have to change the next election. When the HC did not give a stay on the ordinance, the case reached the Supreme Court, where it was clubbed with the similar question of OBC reservations from Maharashtra. The apex court, in its interim order in December, produced a shocker for all parties. Panchayat elections should be held in Madhya Pradesh as they were long overdue—since 2019, in fact—but without OBC reservation, it ruled. All hell broke loose at the political level. All the manoeuvrings by the two big parties to snare OBC votes would now be hamstrung. The BJP accused the Congress of being anti-OBC because one of its Rajya Sabha MPs from the state, senior advocate Vivek Tankha, had argued for rotation in court. The Congress returned the compliment, pointing to how the BJP "failed to protect OBC interests in court", forfeiting the gains made when the shortlived Kamal Nath government enhanced the quota to 27 per cent in 2019.



QUALIFIED WIN
CM Shivraj Chouhan being feted on May 21, post SC verdict

Why did the apex court initially disallow OBC reservation? Because it adjudged that the state did not have any authentic data on the actual OBC